Polity · PC-II Prelims Consolidation II

Seq 33 · Fri 13 Nov 2026

Amending power · Federal machinery · Executive · Accountability bodies · Elections · judgments · Counter-case · Chips: Prelims years (2011+) unless 'Mains'

Answer spine for every statement

1. **Read the qualifier** — only, all, always, must, cannot
2. **Name the authority** — Article, statute, resolution or case?
3. **Test the actor** — who appoints, selects, approves, revokes?
4. **Pin the number** — 1 month / 2 months / 6 months / 3 years
5. **Date the change** — 44th? 91st? 2019? 2023–25 rulings?
6. **Commit or flag** — T, F or '?' — solve the surest first

① Amending power & basic structure — RED — 23 PYQs

Amendment 2011–15·17–25 · Mains 2013·16·19·25

1967	Golaknath: FR unamendable; prospective overruling
1971	24th: 368 covers FR; President **must** assent
1973	Kesavananda: amend anything but the **basic structure**
1975	Raj Narain: free and fair elections basic
1980	Minerva: 368(4)–(5) struck; limited power basic
1981 / 2007	Waman Rao / Coelho: Ninth Sch. after 24-4-1973 reviewable
2015	NJAC (99th) struck — judicial independence

Procedure: either House · minister or private member · no prior recommendation · special majority separately · federal provisions + half the states (simple majority, no time limit) · no joint sitting · **Outside 368:** Arts 3–4, 169, Fifth/Sixth Sch.

② Federal machinery — RED — 13 PYQs · Mains 9

Federal 2012·13·16·17·20·21·24·25 · Mains 2020·23·24·25·26

249	RS resolution, 2/3 present & voting, national interest; 1 yr
252	2+ states ask; only Parliament amends
253	Treaties: any subject, no consent
254	Repugnancy: Union wins, unless state law got assent
262	Water disputes: SC jurisdiction excludable (1956 Act)
263	Inter-State Council 1990 (Sarkaria), PM chairs

Zonal Councils statutory 1956, Home Minister · **Commissions** Rajamannar 1969 (TN), Sarkaria 1983, Punchhi 2007 · **Art. 301** trade (Part XIII, Australia) · **248** residuary (Canada)

★ Three emergencies, three different rulebooks

Hero diagram · the most confusable numbers in this slice

The Constitution allows three emergencies

PYQ 2012·14·17·18·19·22	Mains 2023 (356 decline)	Mains 2018 (Art. 360)
NATIONAL (Art. 352)	**PRESIDENT'S RULE (Art. 356)**	**FINANCIAL (Art. 360)**
War · aggression · armed rebellion — 44th replaced 'internal disturbance'	**Constitutional breakdown** — Governor's report, or Art. 365	**Financial stability threatened** — or the credit of India
Cabinet's WRITTEN advice — added by the 44th Amendment	**Approval in 2 months** — simple majority	**Approval in 2 months** — simple majority
Approval in 1 month — special majority, each House	**6 months per approval** — max 3 years	**No maximum period** — once approved
6 months per approval — no ceiling · LS may revoke	**Beyond 1 year** — emergency + ECI certificate	**Union directions to states** — money bills may be reserved
Rights: 358 auto · 359 by order — 20, 21 never suspended · 1962, 71, 75	**Judicial review: Bommai 1994** — floor test · use fell after 1994	**Never proclaimed** — salaries incl. judges may be cut

Lok Sabha term in emergency (Art. 83(2)): extend 1 year at a time · ends ≤ 6 months after emergency

Art. 250: Parliament may legislate on the State List (laws lapse 6 months after) · Art. 353: Union directions to any state

Counter-cases — the exceptions UPSC builds statements on

Pardon: India ≠ US
India pardons only after conviction, on advice; the US allows pre-emptive pardons (Mains 2025).

VP term after a vacancy
A full five years, not the remainder (Radhakrishnan, Sept 2025).

Split is dead, merger lives
91st deleted the 1/3 split; only a 2/3 merger protects.

Consent is not absolute
CBI needs state consent, but the SC or an HC can order a probe anyway.

NHRC can't go back
No inquiry into events more than one year old; findings not binding.

Statutory, not constitutional
Lokpal, CVC, CIC, NHRC, NCW, NIA — none is in the Constitution.

'Cabinet' appears once
Only in Art. 352, added by the 44th; Deputy PM nowhere.

Eclipse is pre-1950 only
Post-1950 laws that violate FR are void from the start.

③ President · VP · PM — 40 PYQs across rows 8–9

President 2012–14·17·18·23·25·26 · PM/CoM 2011–15·17·19·21·22·24·25

	President	Vice-President
Who votes	Elected MPs + elected MLAs (incl. Delhi, Puducherry)	All MPs, incl. nominated
Removal	Impeachment: violation of Constitution; 1/4 sign, 14 days, 2/3 total each House	RS effective majority + LS agrees
Mid-term vacancy	Full 5 years	Full 5 years (2025)

Art. 72 court martial · Union law · death; on advice · **74(1)** return once (44th) · **74(2)** advice not inquirable · **123** ordinance: not in session, 6 weeks, retrospective OK, no amendment · **75(1A)** 15% of LS · **75(3)** collective to LS · **75(5)** 6 months · **78** PM informs

④ Accountability bodies — deferred → first pass — Mains 8 · Prelims match-tables 2025–26

NHRC/CIC/CVC/NITI 2011–13·19·20·22–24·26 · CBI/Lokpal 2025·26

Body	Selection	Key trap
NITI	Executive resolution 2015; PM chairs	Advises; allocates no funds
NHRC	PM, Speaker, HM, 2 LoPs, RS Dy Ch.	3 yrs/70 (2019); 1-yr bar; not binding
CIC	PM, LoP, Cabinet Min.	Term set by Union (2019): 3 yrs; DPDP 8(1)(j) 2025
CVC	PM, HM, LoP	1964 → statutory 2003; 4 yrs/65
CBI	PM, LoP, CJI/nominee	DSPE 1946; state consent; 2→5 yrs
Lokpal	PM, Speaker, LoP, CJI, jurist	1 + 8, half judicial; 2019; Khanwilkar
NIA · NDMA	2008 Act · PM chairs NDMA	NIA needs no consent

Mains reform line: fix commissioners' tenure and pay in the statute (Parliament) so the executive cannot vary them; make NHRC findings binding unless rejected with reasons laid before the legislature.

⑤ Elections, parties, judgments, doctrines — Mains-heavy: 35 Mains Qs across these rows

Anti-defection · RPA

Tenth Sch. **52nd 1985**; 91st 2003 split deleted

Speaker = tribunal, reviewable (Kihoto 1992); **3 months** (Meghachandra 2020; **Telangana, 31 Jul 2025**)

2-yr sentence → disqualified at once (Lily Thomas 2013) · bonds struck (Feb 2024) · NOTA no effect

Defection 2014·22 · Mains 9

Parties · pressure groups

Registration s. 29A RPA; recognition Symbols Order 1968 (4-state route)

No general power to deregister (2002)

Almond–Powell: institutional, associational, non-associational, anomic · Kothari 'Congress system' 1964

Parties 2020·22·25 · Mains 9

2023–24 constitution benches

Art. 370 upheld (Dec 23) · bonds struck (Feb 24) · **Sita Soren** no bribe privilege (Mar 24) · Ranjitsinh climate (24) · **Davinder Singh** SC sub-classification (Aug 24) · 39(b) narrowed (Nov 24) · Azeez Basha overruled (Nov 24)

Doctrines: pith & substance (Balsara 51) · colourable (Gajapati 53) · eclipse (Bhikaji 55) · severability (RMDC 57) · prospective overruling (Golaknath 67)

Mains: judgments 8 · comparative 9

VERDICT PC-II carries **111** Prelims and **64 of 134** Polity Mains questions. Prelims marks sit in the **amendment–President–PM machinery**, most of it Red on your tracker. Mains marks sit in **parties, comparisons, anti-defection, federalism and the accountability bodies**. Win Prelims by pinning the emergency numbers and who-votes-for-whom; win Mains by framing every body as independence versus executive control — and by citing the **2023–25 rulings**.